

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS----- X
JONATHAN CARNOT,

Plaintiff,

-against-

CITY OF NEW YORK, DETECTIVE ANTHONY J.
NEVANDRO, Tax No. 941091, and POLICE OFFICERS
JOHN DOES #1-10 (names and number of whom are
unknown at present), and other unidentified members of the
New York City Police Department,Defendants.
----- X**SUMMONS**

Index No.:

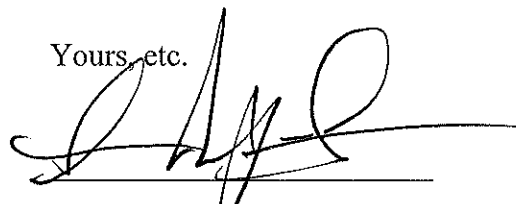
The Basis of Venue is:
Location of IncidentPlaintiff designates Kings
County as the place of trial.**JURY TRIAL DEMANDED****To the above named Defendants:**

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York

June 29, 2017

Yours, etc.

ELLIOT D. SHIELDS, ESQ.
Attorney for Plaintiff
192 Lexington Avenue, Suite 802
New York, New York 10016
(212) 425-1020

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
Detective Anthony J. Nevandro, Tax No. 941091, 66th Precinct Detective Squad, 5822
16th Avenue, Brooklyn, New York 11212

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

JONATHAN CARNOT,

Plaintiff,

INDEX NO.:

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK, DETECTIVE ANTHONY J. NEVANDRO, Tax No. 941091, and POLICE OFFICERS JOHN DOES #1-10 (names and number of whom are unknown at present), and other unidentified members of the New York City Police Department,

JURY TRIAL DEMANDED

Defendants.

----- X

Plaintiff, JONATHAN CARNOT, by his attorney, ELLIOT D. SHIELDS, as and for his Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, and of rights secured by the First, Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution, and the Constitution and common law of the State of New York. On January 28, 2016, at approximately 5:00 p.m., plaintiff, Jonathan Carnot, while lawfully inside of a friend's apartment, located at 667 East 30th Street, basement apartment, Brooklyn, New York, was subject to an unlawful assault, battery, search, false arrest, and false imprisonment by the defendant New York City detectives and police officers. Despite having actual knowledge that Mr. Carnot did not own or reside in the apartment, and that based on their observations of Mr. Carnot it would have been impossible for him to have committed the crimes for which he was arrested and charged, the defendant police officers nevertheless arrested Mr. Carnot and fabricated official police paperwork that falsely stated he possessed drugs and weapons. While Mr. Carnot was at the 67th Precinct, the defendant NYPD officers unlawfully strip searched plaintiff, and forwarded the falsified police paperwork to the Kings County District Attorney's

Office, thereby initiating a malicious prosecution of plaintiff and denying him his constitutional right to a fair trial. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully searched, falsely arrested, falsely imprisoned, strip-searched, fabricated evidence, and maliciously prosecuted plaintiff in violation of the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution, and the Constitution and common law of the State of New York.

PARTIES

2. Plaintiff JONATHAN CARNOT is a resident of Henry County, Georgia.

3. Defendant CITY OF NEW YORK ("CITY") is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant CITY assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the NYPD.

4. NYPD DETECTIVE ("DET.") ANTHONY J. NEVANDRO ("NEVANDRO") (Tax No. 941091) and JOHN DOES # 1-10 ("Police Officer John Does") (collectively, "Defendant POLICE OFFICERS," individually, "Defendant POLICE OFFICER"), are and were at all times relevant herein, officers, employees and agents of the NYPD.

5. The defendant NYPD officers are being sued in their individual and official capacities.

6. At all times relevant herein, the individual NYPD defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the Defendant CITY OF NEW YORK, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the NYPD at all times relevant herein, with the

power and authority vested in them as officers, agents and employees of the NYPD and incidental to the lawful pursuit of their duties as officers, employees and agents of the NYPD.

7. The individual NYPD defendants' acts hereafter complained of were carried out intentionally, recklessly, with malice, and in gross disregard of plaintiff's rights.

8. At all relevant times, the individual defendants were engaged in joint ventures, assisting each other in performing the various actions described herein and lending their physical presence in support and the authority of their offices to one another.

9. Plaintiff, in furtherance of his State causes of action, filed a Notice of Claim against the CITY OF NEW YORK. The City held a 50-h hearing on October 21, 2016.

10. More than thirty (30) days have elapsed since said Notice of Claim was filed and the CITY OF NEW YORK has failed to pay or adjust the claim.

11. This action is being brought within a year and 90 days of the event giving rise to Plaintiff's State causes of action.

12. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

13. Plaintiff sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

14. On January 28, 2016, at approximately 5:00 p.m., plaintiff, Jonathan Carnot, arrived at at 667 East 30th Street, Brooklyn, New York, where his friend his friend Jawara Dewar lived in the basement apartment.

15. The property at 667 East 30th Street, Brooklyn, New York has a fence around the premises, which has a gate leading down the walkway to the building's entrance.

16. As Mr. Carnot approached the premises, he walked past several defendant NYPD officers in an NYPD vehicle, and heard them speak to a homeless man that was walking down the street.

17. Mr. Carnot then entered the gate to the premises and then entered the front door to his friend's basement apartment.

18. Upon information and belief, the NYPD officers observed Mr. Carnot enter the front door to his friend's apartment.

19. Mr. Carnot descended the stairs to his friend's basement apartment, and entered into the foyer of the apartment.

20. Immediately after Mr. Carnot entered the apartment, while he was still present in the apartment's foyer, five to ten defendant NYPD officers kicked down the front door and rushed into the apartment with their guns drawn.

21. The defendant NYPD officers yelled at Mr. Carnot to get on the ground, and he complied.

22. The defendant NYPD officers immediately handcuffed Mr. Carnot.

23. The defendant NYPD officers asked Mr. Carnot if he lived in the apartment, and he answered he did not.

24. While speaking with Mr. Carnot, the defendant NYPD officers stated that they observed Mr. Carnot enter the front door to the apartment immediately before they entered the apartment.

25. The defendant NYPD officers then frisked and searched Mr. Carnot, and removed all the contents of his pockets, without probable cause or legal justification.

26. The defendant NYPD officers did not recover any drugs, weapons, contraband or other illegal paraphernalia from Mr. Carnot's person, or from his custody, possession or control.

27. The defendant NYPD officers removed Mr. Carnot's identification from his pocket, and asked Mr. Carnot if he lived at 667 East 30th Street, Brooklyn, New York, or the address listed on his identification.

28. Mr. Carnot informed the defendant NYPD officers that he lived at the address listed on his identification, not 667 East 30th Street, Brooklyn, New York.

29. The defendant NYPD officers also removed Mr. Carnot's keys from his pocket and attempted to insert each key into the locks on the apartment's doors, but none of the keys fit. The defendant NYPD officers stated to Mr. Carnot that none of his keys worked on the apartment's door(s).

30. The defendant NYPD officers also removed \$3,000 in cash from Mr. Carnot's pocket and accused him of possessing the money for an illegal purpose.

31. Mr. Carnot explained to the defendant NYPD officers that he was shopping for a box truck, and was planning to use the cash to purchase a box truck that day.

32. The defendant NYPD officers never returned Mr. Carnot's \$3,000 to him.

33. Mr. Carnot was forced to lay handcuffed on the floor for approximately 15 to 30 minutes while the defendant NYPD officers searched his friend's apartment.

34. While the defendant NYPD officers searched the apartment, Jawara Dewar told Defendant DET. NEVANDRO that he lived in the apartment, and that Mr. Carnot did not live in the apartment.

35. At no time did the defendant police officers recover any drugs, contraband or other illegal paraphernalia from Mr. Carnot, or from his custody, possession or control.

36. At no time did Mr. Carnot commit any crime or violate the law in any way.

37. Nevertheless, the defendant NYPD officers unlawfully arrested Mr. Carnot without probable cause or legal justification.

38. Thereafter, Mr. Carnot was transported to the NYPD's 67th precinct.

39. When plaintiff arrived at the 67th precinct, the officers took all his property, fingerprinted and photographed him, and then placed Mr. Carnot in a cell.

40. After some time, Mr. Carnot was removed from the cell and placed in an interrogation room in the 67th Precinct Detective Squad.

41. Defendant DET. NAVANDRO and several defendant NYPD officers and detectives then interrogated Mr. Carnot.

42. Defendant DET. NAVANDRO and the other defendant NYPD officers and detectives who interrogated Mr. Carnot told him that if he gave them information about Jawara Dewar's alleged drug dealing and other criminal activities, they would release him from custody without charging him with a crime.

43. Mr. Carnot informed defendant DET. NAVANDRO and the other defendant NYPD officers and detectives that he had no knowledge or information regarding any alleged drug dealing or other criminal conduct having been committed by Jawara Dewar.

44. Defendant DET. NAVANDRO and the other defendant NYPD officers and detectives interrogated Mr. Carnot for approximately 30 minutes.

45. Eventually, Defendant DET. NAVANDRO and the other defendant NYPD officers and detectives told Mr. Carnot, in sum and substance, that "since you won't snitch on your friend, we're not going to help you out and so now you are going to be processed through the system."

46. Mr. Carnot was then placed back into a cell.

47. Thereafter, while still at the 67th precinct, the Defendant DET. NAVANDRO and the other defendant NYPD officers fabricated their account of why they arrested Mr. Carnot in official police paperwork, falsely stating that he had committed numerous crimes.

48. Defendant DET. NAVANDRO and the other defendant NYPD officers falsely accused Mr. Carnot of violating Penal Law Sections 221.25, 221.20, 268.01-B(1), 221.15, 265.01(1), 221.10(2), and 221.05 in official police paperwork.

49. Defendant DET. NAVANDRO and the other defendant NYPD officers sent the paperwork that falsely accused Mr. Carnot of violating Penal Law Sections 221.25, 221.20, 268.01-B(1), 221.15, 265.01(1), 221.10(2) to the Kings County District Attorney's Office, despite knowing it contained facts and evidence they knew to be untrue, and which would likely influence the factfinder's determination of Mr. Carnot's guilt or innocence.

50. A criminal prosecution was initiated by defendants against Mr. Carnot without probable cause, and based upon the false communications to the District Attorney's Office by the

defendant NYPD officers, for alleged violations of Penal Law Sections 221.25, 221.20, 268.01-B(1), 221.15, 265.01(1), 221.10(2), and 221.05.

51. Defendant DET. NAVANDRO signed a Criminal Court Complaint that contained a fabricated account of the incident that led to Mr. Carnot's arrest, which was filed in New York County Criminal Court, which formed the basis for the prosecution of Mr. Carnot for alleged violations of Penal Law Sections 221.25, 221.20, 268.01-B(1), 221.15, 265.01(1), 221.10(2), and 221.05.

52. Based on the defendant's observations, it would have been impossible for Mr. Carnot to have committed the crimes they accused him of committing.

53. After being detained at the 67th Precinct for approximately 18 hours, plaintiff was transported to Kings County Central Booking.

54. After being detained at Kings County Central Booking for approximately 7 hours, plaintiff was arraigned in Kings County Criminal Court.

55. At arraignment, Mr. Carnot was falsely charged with several felonies and misdemeanor crimes, including Criminal Possession of a Marijuana in the Second Third, Fourth and Fifth degrees (Penal Law Sections 221.25, 221.20, 221.15, 221.10(2), respectively), unlawful possession of marijuana (Penal Law Section 221.05), Criminal Possession of a Firearm (Penal Law Section 268.01-B(1)), and Criminal Possession of a Weapon in the Fourth Degree (Penal Law Section 265.01(1)).

56. At arraignment, plaintiff's bail was set in the amount of \$2,500, which he was unable to post, and he was remanded to the custody of the Department of Correction.

57. Mr. Carnot posted bail and was released from custody at approximately 11:00 p.m. on January 29, 2016.

58. Mr. Carnot was detained for a total of approximately 30 hours.

59. Mr. Carnot hired a private criminal defense attorney and paid him approximately \$4,000.

60. After making approximately three appearances in criminal court, all of the false criminal charges defendants brought against Mr. Carnot by the defendants were dismissed in their entirety on April 6, 2016.

61. Some of the police officer defendants observed the violation of Mr. Carnot's rights under the Constitutions of the United States and the State of New York, and state common law, but did nothing to prevent the unlawful search, false arrest, false imprisonment, fabrication of evidence, and malicious prosecution of plaintiff.

62. The unlawful search, false arrest, false imprisonment, fabrication of evidence, and malicious prosecution of plaintiff by the defendant NYPD officers caused plaintiff to sustain physical, psychological and emotional trauma, and economic damages.

PLAINTIFF'S INJURIES AND DAMAGES

63. As a direct and proximate consequence of the aforementioned actions by the defendants, plaintiff:

- a. Suffered an unlawful detention and loss of freedom for 31 hours;
- b. Suffered and continues to suffer mental and emotional distress and harm;
- c. Suffered a loss of \$3,000.00 that the defendant NYPD officers confiscated and never returned to plaintiff.
- d. Was denied the opportunity to purchase a box truck and thus denied business opportunities;

- e. Was publicly shamed, disgraced, ridiculed and humiliated and suffered damage to reputation;
- f. Had to pay approximately \$4,000.00 and incurred debts for the costs of his legal defense;
- g. Lost substantial employment income and permanent impairment of earning power; and
- h. Incurred other items of attendant damages.

FIRST CLAIM FOR RELIEF

DEPRIVATION OF FEDERAL CIVIL RIGHTS UNDER 42 U.S.C. § 1983

64. Plaintiffs re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

65. All of the aforementioned acts of the Defendant CITY, and the Defendant POLICE OFFICERS and their agents, servants and employees ("Defendants"), were carried out under the color of state law.

66. All of the foregoing acts by Defendants deprived Plaintiff of federally protected rights, including, but not limited to, the right:

- a. Not to be deprived of liberty without due process of law;
- b. To be free from seizure and arrest not based upon probable cause;
- c. To freedom from being subjected to false criminal charges by the police;
- d. To freedom from excessive force;
- e. To freedom from being unlawfully searched and strip searched by the police;
- f. To freedom from retaliatory prosecution;

- g. To be free from malicious prosecution;
- h. To the right to a fair trial;
- i. To freedom of speech and expression.

67. All of the aforementioned acts deprived Plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the First, Fourth, and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

68. The acts complained of were carried out by the aforementioned NYPD defendants in their capacities as police officers with all of the actual and/or apparent authority attendant thereto.

69. The acts complained of were carried out by the aforementioned individual NYPD defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of Defendant CITY and the NYPD, all under the supervision of ranking officers of said department.

70. As a result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer economic injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, legal expenses and damages to his reputation and standing within his community.

71. Accordingly, Plaintiff demands judgment against Defendants in a sum of money to be determined at trial.

SECOND CLAIM FOR RELIEF

FALSE ARREST UNDER 42 U.S.C. § 1983

72. Plaintiff re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

73. One or more of the Defendant NYPD officers, including but not limited to Defendant DET. NEVENDRO handcuffed and arrested plaintiff.

74. This arrest was made in the absence of a warrant for the arrest.

75. This arrest was made in the absence of probable cause for this arrest.

76. The Defendant NYPD officers arrested plaintiff without having exigent circumstances for doing so.

77. There was no other authority for the arrest of plaintiff.

78. The plaintiff was conscious of this arrest.

79. The plaintiff did not consent to this arrest.

80. As a result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer economic injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, legal expenses and damages to his reputation and standing within his community.

81. Accordingly, plaintiff demands judgment against Defendants in a sum of money to be determined at trial.

THIRD CLAIM FOR RELIEF

UNLAWFUL SEARCH UNDER 42 U.S.C. § 1983

82. Plaintiff re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

83. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

84. Defendants lacked probable cause to search plaintiff.

85. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the United States Constitution and the State of New York.

86. As a result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer economic injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, legal expenses and damages to his reputation and standing within his community.

87. Accordingly, plaintiff demands judgment against Defendants in a sum of money to be determined at trial.

FOURTH CLAIM FOR RELIEF

DENIAL OF THE RIGHT TO A FAIR TRIAL UNDER 42 U.S.C. § 1983

88. Plaintiff re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

89. By deliberately manufacturing false evidence against Mr. Carnot, including police reports and other arrest paperwork containing the defendants' own fabricated accounts that Mr. Carnot was engaged in criminal activity, and forwarding that fabricated evidence to prosecutors, the defendant NYPD officers caused plaintiff to be arrested, detained, charged, and prosecuted, in violation of his rights pursuant to the Fifth, Sixth, and Fourteenth Amendments to the United States Constitution, to due process of law and to a fair trial, and are liable to plaintiff under 42 U.S.C. § 1983, for compensatory and punitive damages.

90. As a result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer economic injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, legal expenses and damages to his reputation and standing within his community.

91. Accordingly, plaintiff demands judgment against Defendants in a sum of money to be determined at trial.

FIFTH CLAIM FOR RELIEF

MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983

92. Plaintiff re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

93. The defendant NYPD officers, acting individually and in concert, initiated the prosecution of Mr. Carnot, despite knowing that probable cause did not exist to arrest and prosecute Mr. Carnot for any crime.

94. False and fabricated evidence was given by defendant NYPD officers to the District Attorney's Office.

95. The defendant NYPD officers knew or were deliberately and recklessly indifferent to the truth that probable cause did not exist to arrest and prosecute Mr. Carnot.

96. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiffs and for each of the charges for which he was prosecuted.

97. On April 6, 2016, the prosecution terminated in Mr. Carnot's favor.

98. As a direct and proximate result of the NYPD defendants' actions, Mr. Carnot was wrongly prosecuted for over three months and suffered the other grievous and continuing injuries and damages as set forth above.

99. Accordingly, Plaintiff demands judgment against the defendants in a sum of money to be determined at trial.

SIXTH CLAIM FOR RELIEF

MALICIOUS PROSECUTION UNDER NEW YORK STATE LAW

100. Plaintiff repeats and reiterates all of the allegations contained above as if fully set forth herein.

101. By the actions described above, each and all of the NYPD defendants, jointly and severally, acting in concert with each other and with additional persons for whose acts they are liable, initiated, continued and/or caused the initiation or continuation of, criminal proceedings against Plaintiff.

102. By the actions described above, each and all of the NYPD defendants violated good and accepted police practices, and various sections of the NYPD Patrol Guide, including but not limited to section 203-08.

103. On April 6, 2016, the prosecution terminated in Mr. Carnot's favor.

104. There was no probable cause for the commencement or the continuation of the criminal proceedings.

105. The NYPD defendants acted with actual malice.

106. The NYPD defendants were at all times agents, servants, and employees acting within the scope of their employment by the Defendant CITY and the NYPD, which are therefore responsible for their conduct.

107. The Defendant CITY, as the employer of the individual NYPD defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SEVENTH CLAIM FOR RELIEF
MUNICIPAL LIABILITY UNDER *MONELL*

108. Plaintiff repeats and reiterates all of the allegations contained above as if fully set forth herein.

109. The City of New York, through its Police Department and Police Commissioners, had in effect, both before and at the time of the events alleged in this complaint, several interrelated de facto policies, practices and customs, including, *inter alia*,

- a. a policy, practice and custom of falsely charging individuals with crimes in retaliation for their inability and/or perceived lack of truthfulness in being unable to provide information regarding crimes the NYPD officers are investigating;
- b. a policy, practice and custom of failing to properly train or supervise officers in the proper techniques of investigating serious crimes;
- c. a policy, practice and custom of using coercion, isolation, intimidation, manipulation, deceit, false promises, and other unlawful and improper interrogation methods;
- d. a policy, practice and custom of failing to properly discipline officers who violate the United States Constitution or law, or otherwise transgress the rights of criminal suspects during their investigations; and
- e. a policy, practice and custom of doing whatever necessary to secure convictions of persons accused of drug crimes with concomitant refusal to consider evidence inconsistent with the theory of those persons' guilt.

110. These interrelated policies, practices and customs, separately and/or together, were implemented with deliberate indifference, and were a direct and proximate cause of the plaintiff's Constitutional violations and injuries, as set forth above.

111. These interrelated policies, practices and customs, separately and/or together, were the direct and proximate cause of injury and damage to plaintiff and violated his rights as guaranteed by the United States Constitution, as well as his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

112. The existence of these interrelated policies, practices and customs can be inferred from numerous incidents reflecting a pattern of police misconduct like that alleged herein. (*See, e.g. In re McCray, Richardson, Santana, Wise and Salaam Litigation*, 03-cv-9685(DAB)(RLE) [S.D.N.Y. 2003]).

113. The existence of these interrelated policies, practices and customs can be inferred from the fact that the incidents of police misconduct alleged herein were authorized by individuals with policymaking authority in the Police Department.

114. As a result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer economic injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, legal expenses and damages to his reputation and standing within his community.

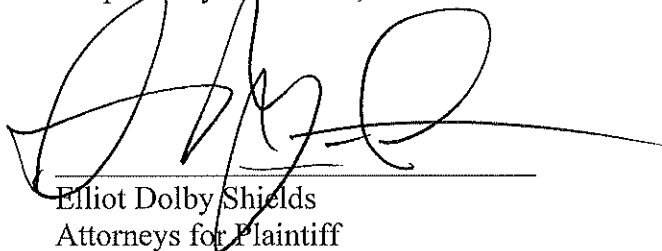
115. Accordingly, plaintiff demands judgment against Defendants in a sum of money to be determined at trial.

WHEREFORE, and in light of the foregoing, it is respectfully requested that the Court assume jurisdiction and:

- a. Empanel a jury;
- b. Award compensatory and punitive damages awards, each in the separate amounts of \$2,000,000, or such greater amounts as may be set by a jury;
- c. A court order, pursuant to 42 U.S.C. §1988, that the plaintiffs are entitled to the costs involved in maintaining this action and attorneys' fees;
- d. Award appropriate declaratory and injunctive relief;
- e. The plaintiff demands the foregoing relief jointly and severally against all of the defendants, except that the punitive damages demands are, as a matter of law, not recoverable against a municipality and therefore are not made against the City;
- f. Such other and further relief as this court may deem just and proper.

Dated: New York, New York
June 29, 2017

Respectfully Submitted,



Elliot Dolby Shields
Attorneys for Plaintiff
192 Lexington Avenue, Suite 802
New York, New York 10024
(212) 425-1020

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
Detective Anthony J. Nevandro, Tax No. 941091, 66th Precinct Detective Squad, 5822
16th Avenue, Brooklyn, New York 11212

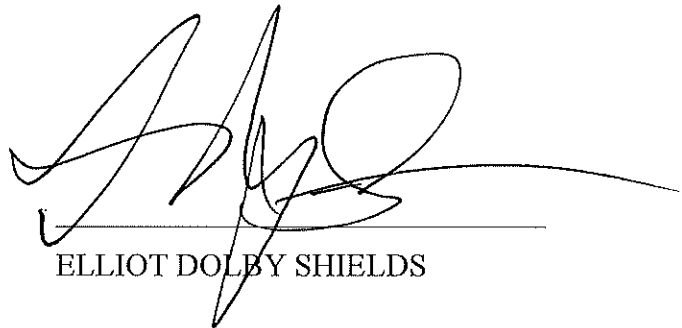
ATTORNEY'S VERIFICATION

ELLIOT DOLBY SHIELDS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a solo practitioner, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

DATED: New York, New York

June 29, 2017



ELLIOT DOLBY SHIELDS